

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff’s claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

Here, accepting Plaintiff’s allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant’s evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

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26CV-02336                      Gemma Quintero vs Aniah Jenkins

Order to Show Cause Re: Restraining Order

**Appearance required. All parties have appeared in this action.**

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26CV-03091                      Vanessa Mercado vs Danielle Navarro

Order to Show Cause Re: Restraining Order

**Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed with the court on July 8, 2026.**

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26CV-03428                      Angel Rivas vs Jessica Lynn Pieri

Petition for Minor’s Compromise

**The petition for approval of the minor’s compromise is GRANTED.**

**The Court will sign the orders lodged on June 24, 2026.**

**A status conference is set for November 18, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor's funds into the blocked account.**

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Limited Civil  
Judge Pro Tem Peter MacLaren  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Thursday, July 23, 2026  
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No.   | Title / Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
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| 25CV-06342 | TD Bank USA, N.A. vs. Joseph Ragus<br><br>Order to Show Cause Why Sanctions Should Not Be Imposed on Plaintiff's Counsel<br><br><b>Appear to show cause why monetary sanctions should not be imposed on Plaintiff's counsel of record for failing to attend the case management conference on May 8, 2026, and failure to file a case management conference statement.</b><br><br>Case Management Conference<br><br><b>Appearance required.</b>                                             |
| 26CV-00583 | [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]<br><br>Motion to Set Aside Default and Default Judgment<br><br><b>Defendant's motion to set aside the default and vacate the default judgment is DENIED due to lack of notice. Defendant has not filed proof of service to show Plaintiff received notice of the motion and no written opposition has been filed by Plaintiff indicating waiver of notice. Even if Defendant had provided notice to Plaintiff, the Court notes</b> |